



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-22-00469 | Back 40, 3rd Filing Zoning Map Amendment
Date: February 13, 2023

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 2/13/2023
- Public Services Committee 2/22/2023
- Second reading 2/27/2023
- Public Services Committee 3/7/2023
- Third and final reading 3/13/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their February 6, 2023 meeting and unanimously recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MUB MIXED-USE BUSINESS AND CB COMMUNITY BUSINESS TO CB COMMUNITY BUSINESS FOR LAND LOCATED BETWEEN OLD HAPPY JACK ROAD AND LINCOLNWAY, WEST OF MISSILE DRIVE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on February 6, 2023, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 4, Back 40 Subdivision, Third Filing, City of Cheyenne, Laramie County, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval, publication, and upon the official filing of the affiliated Back 40 Subdivision, Third Filing final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

FEBRUARY 6, 2023

STAFF REPORT

FILE: UDC-22-00469: Back 40, 3rd Filing – Zoning Map Amendment

REQUEST: A request to clarify the zoning on a split-zoned parcel to become one zone: CB Community Business

LOCATION: Between Old Happy Jack Road and Lincolnway, west of Missile Drive

APPLICANT: AVI – Brad Emmons

AGENT: AVI – Brad Emmons

OWNER: Dozzer, LLC

ZONING: MUB Mixed-use Business Emphasis and CB Community Business

FUTURE LAND USE: Mixed-use Residential

PURPOSE: To clarify a new split-zoned parcel

PREPARED BY: Seth Lloyd, Senior Planner



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 1, Block 4, Back 40, 3rd Filing to CB Community Business as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MUB Mixed use Business Emphasis and CB Community Business to CB Community Business for 1.7 acres of land.

The proposed CB zoning allows variety of commercial uses in an automobile-centric format.

Part of the land was zoned CB with a separate platting action, but the newly proposed platting creates a new lot that is roughly ½ CB and ½ MUB. This proposed action clarifies which zoning should apply to the dual-zoned parcel.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Residential	CB Community Business, MUB Mixed-use Business Emphasis	Vacant
North	Mixed-use Residential	MUB	Vacant
South	Mixed-use Residential Mixed-use Commercial	CB	Vacant
East	Mixed-use Residential, Mixed-use Commercial	MUB	Vacant
West	Mixed-use Residential	CB	Vacant

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with

existing infrastructure in close proximity (although a small extension would be necessary to reach this particular property).

The location associated with nearby freeways and Lincolnway would encourage the development of automobile-oriented commercial uses in this area. PlanCheyenne encourages the flexibility to be responsive to market demands.

The Future Land Use Designation for this property and the surrounding area is Mixed-use Residential and Mixed-use Commercial. According to comprehensive plan the optimal City zone for the subject property's future land use designation is MUR Mixed-use Residential Emphasis, although a variety of commercial, residential, and mixed-use zones could also be appropriate based on the context of the site. The proposed zoning is CB, a commercial-emphasis zone. Mixed-use Residential areas are encouraged to develop with primarily residential uses, but other commercial and employment uses are also encouraged. This property is also near a Regional Activity Center on the Future Land Use Map. Activity Centers are intended for a mix of commercial and residential uses with access to regional transportation. Regional-serving commercial uses is an expected component of an Activity Center. The proposed CB zone is considered one of the optimal zones for activity centers of this type.

The policies of PlanCheyenne are supportive of this proposed zone change. The future land use plan encourages commercial-style zoning at this location.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

All adjacent property is currently undeveloped. Property to the south and west are zoned CB, while property to the north and east are zoned MUB. Either zone would be compatible with the area, but the MUB parcels are across rights-of-way, and the CB zoned parcels are on the same block. Zoning the subject property CB would allow adjacent properties to be consolidated into one development without another zone change. The proposed zoning is also compatible with the future land use designation of Mixed-use Residential and an activity center.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The replatting of the property results in the lot being dual-zoned. Dual zoning on a parcel can lead to issues in applying the correct use allowances, dimensional standards, and design standards. The re-zoning of the entire parcel to either the MUB or CB zone would be appropriate. CB zoning allows the entire block to share one zoning designation. CB zoning allows a variety of commercial uses (and limited residential) and is expected to develop with an automobile-oriented development pattern.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The zone change is proposed in association with a platting action. The associated platting action conforms to Article 4 standards to the extent possible.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CB zone is intended to develop with regional-serving retail, employment, service, and civic uses in activity centers or areas designated Community Business by the comprehensive plan. This area is designated as an activity center by PlanCheyenne and has ready access to major transportation routes.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

There is no specific development proposed in concert with this rezoning. The parcel should have no issues meeting standards for CB-style development, and there are a number of commercial uses which would be eligible to be established at this location. Multifamily residential uses could also be appropriate.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne
- Missile Drive Corridor Plan (2010)

Conformance with PlanCheyenne is covered by review criterion 1.

The Missile Drive Corridor Plan anticipates the redevelopment of this area, including the vacating and re-aligning of streets and new residential and commercial development.

STAFF REVIEW:

Through the review process, no review comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The CB zone is appropriate based on the comprehensive plan and context of the property.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

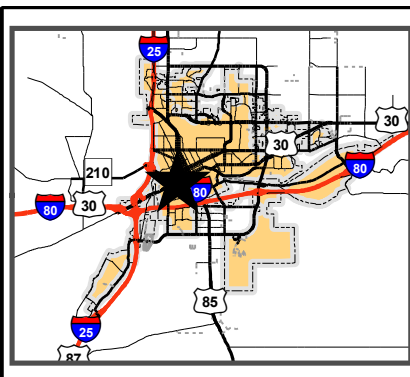
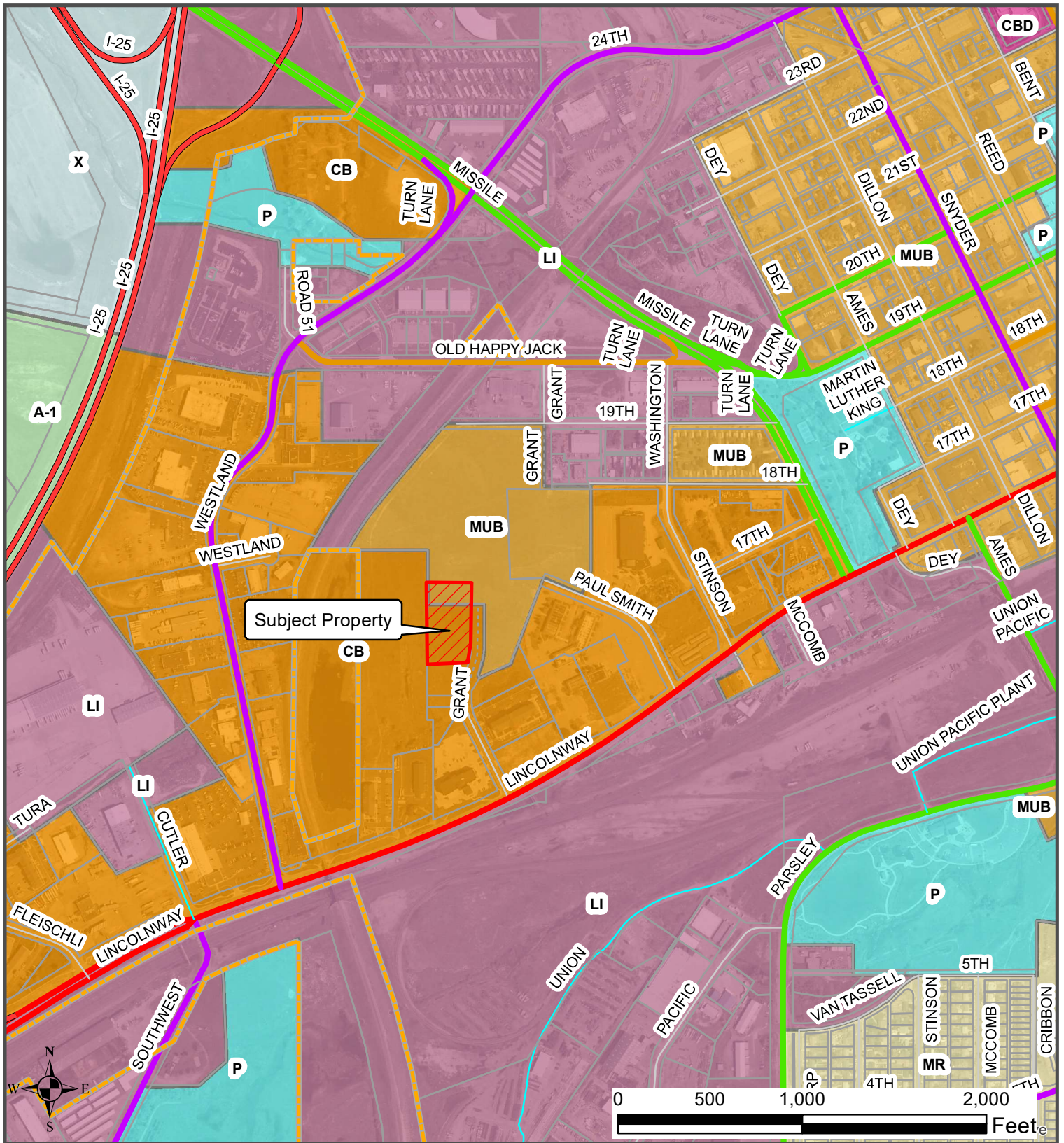
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MUB Mixed-use Business Emphasis and CB Community Business to CB Community Business.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

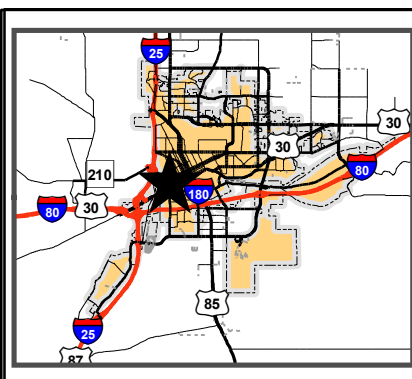
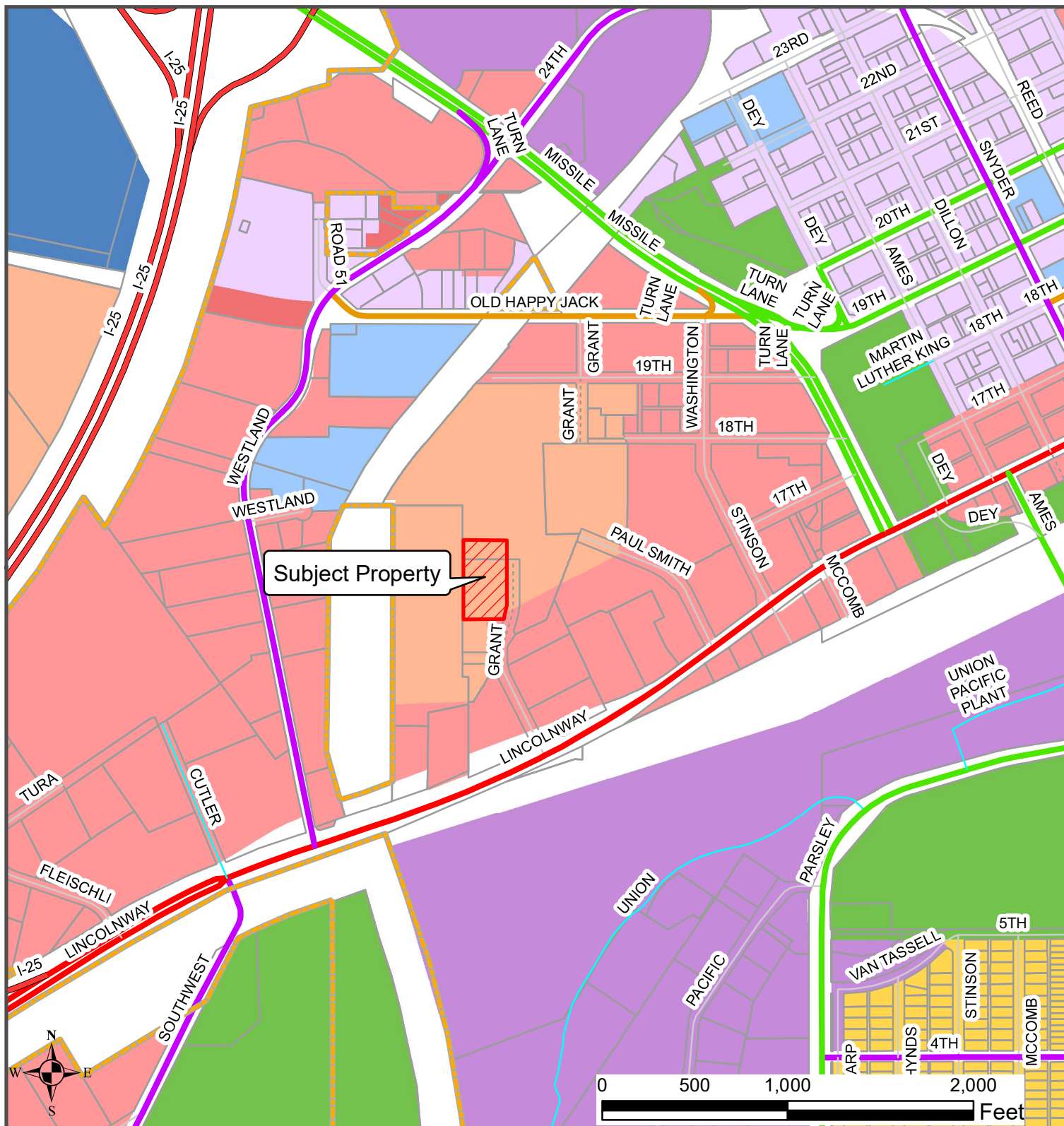


Attachment 1: Zoning Map UDC-22-00469

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

- | | |
|--|--|
| <ul style="list-style-type: none"> Nov19_CityLimits Interstate Principal Arterial Minor Arterial Major Collector Minor Collector Local Private Platted not built HR / High Density Residential MR / Medium Density Residential LR / Low Density Residential NR-2 / Neighborhood Residential - Med. Density NR-3 / Neighborhood Residential - High Density AR / Agricultural Residential | <ul style="list-style-type: none"> A-1 / Agricultural and Rural Residential A-2 / Agricultural AG / City Agricultural MUR / Mixed Use Residential Emphasis CBD / Central Business District CB / Community Business NB / Neighborhood Business MU / Mixed Use - County MUB / Mixed Use Business Emphasis MUE / Mixed Use Employment Emphasis HI / Heavy Industrial LI / Light Industrial P / Public AD / Airport District PUD / Planned Unit Development X / Exempt |
|--|--|



Attachment 2:
Land Use Map
UDC-22-00469

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Legend

-
- Legend:
- Nov19_CityLimits
 - Interstate
 - Principal Arterial
 - Minor Arterial
 - Major Collector
 - Minor Collector
 - Local
 - Private
 - Platted not built
 - Ownership
 - Agricultural/Rural
 - Rural Residential
 - Urban Transition Residential
 - Urban Residential
 - Mixed-Use Residential
 - Mixed-Use Commercial
 - Mixed-Use Employment
 - Industrial
 - Central Business District
 - Community Business
 - Public and Quasi-Public
 - Military/Federal
 - Open Space and Parks

Planning and Development: Zoning Map Amendment Application

Submission date: **27 December 2022, 5:47PM**

Receipt number: **46**

Related form version: **10**

General Information

Applicant Name: **AVI - Brad Emmons**

Applicant Address: **1103 Old Town Lane #101**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **3076376017**

Applicant Email: **emmons@avipc.com**

Representative Name: **AVI - Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **3076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Dozzer LLC**

Owner Address: **2770 ARAPAHOE RD STE 132 PMB 196**

Owner City:	LAFAYETTE
Owner State:	CO
Owner Zip Code:	80026
Owner Phone:	7202274232
Owner Email:	steph@lincolncourtcheyenne.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Executed letter-of-authorization Back 40.pdf
Project Location (Street Address or General Location):	Adjacent to Grant Avenue and Paul Smith Way
Assessor's Parcel ID number(s)	R0065308, R0065309
Total Project Area	1.68
Existing Zoning	CB - Community Business MUB - Mixed-use Business Emphasis
Requested Zoning	CB - Community Business

Application-Specific Questions

Written Statement	Getting the zoning consistent for the entire lot.
Zoning Map	Back 40 Zone Change (2022-12-27).pdf
Notification Letter	Back 40 Zone Change Notification_.docx
Supporting Documents / Information	Back 40 Zone Change (2022-12-27).pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

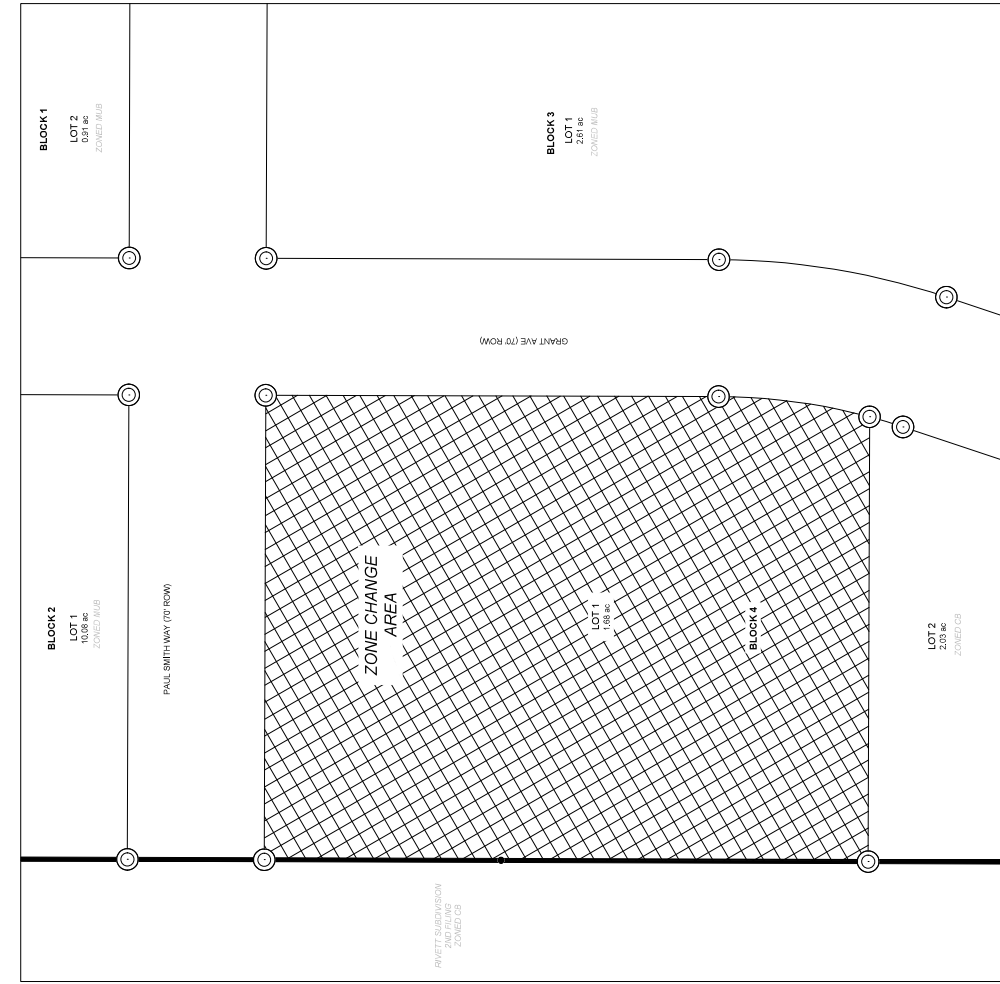
Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com



LEGEND
PROPERTY LINE
PROPOSED ZONING COMMUNITY BUSINESS (CB)

ZONE CHANGE AREA (CB):
THE ENTIRETY OF LOT 1, BLOCK 4 BACK 40 SUBDIVISION THIRD FILING TO BE ADJUSTED TO COMMUNITY BUSINESS (CB) ZONING.

ZONE CHANGE MAP
FOR
LOT 1, BLOCK 4
BACK 40 SUBDIVISION
THIRD FILING

THIRD FILING
BEING SITUATED IN A PORTION OF SECTION 1,
TOWNSHIP 13 NORTH, RANGE 67 WEST OF THE 6TH P.M.,
CITY OF CHEYENNE, COUNTY OF LARAMIE, STATE OF WYOMING
PREPARED DECEMBER 2022

DRAWING NO. 1 OF 1

CON NO.:

CHECKED BY:

DATE: _____

DATE: _____

307.537.5017
1103 OLD TOWN LANE, SUITE 101
WILMINGTON, DE 19804



ENGINEERING
PLANNING
SURVEYING

BACK 40 SUBDIVISION THIRD FILING

TITLE: LOT 1, BLOCK 4 ZONE CHANGE MAP

PREPARED FOR:

ON

REVISION

DATE _____

LEGEND

